In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00046-CV

RODOLFO PEREZ SANCHEZ, Appellant

V.

NOHEMI SANCHEZ, Appellee

On Appeal from the 410th District Court
Montgomery County, Texas
Trial Court No. 25-11-18332

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Chief Justice Stevens

MEMORANDUM OPINION

Nohemi Sanchez applied for and was granted a family-violence protective order against Rodolfo Sanchez Perez (also known as Rodolfo Perez Sanchez). On appeal, Perez argues that the order is not supported by legally and factually sufficient evidence and that the trial court abused its discretion by awarding broader relief "than the evidence justified."[1] Perez also argues that the trial court failed to make specific findings that he requested. Because we conclude that sufficient evidence supported the trial court's family-violence protective order, and that Perez has waived his complaint about specific findings, we overrule Perez's complaints and affirm the trial court's order.

I. Factual and Procedural Background

Nohemi applied for a family-violence protective order against Perez. Her petition alleged that their two minor children, who were six and eight years old, also needed protection from Perez.[2]

At trial, Nohemi said that domestic abuse "[had] been something ongoing . . . for the past two years." Nohemi testified that on February 22, 2025, she was in her bedroom with her seven-year-old child when Perez "came home from work and [came] into the room yelling at [her] about not answering his calls in a timely manner." According to Nohemi, Perez "ripped an I-Watch from [her] left wrist," causing her "to yell and cry from the pain," which led to "[her] kids

[1]Originally appealed to the Ninth Court of Appeals, this case was transferred to this Court by the Texas Supreme Court pursuant to its docket equalization efforts. *See* TEX. GOV'T CODE ANN. § 73.001 (Supp.). We follow the precedent of the Ninth Court of Appeals in deciding the issues presented. *See* TEX. R. APP. P. 41.3.

[2]Nohemi and Perez had two other children who were adults and were not the subject of the protective order.

. . . yelling and crying from . . . fear." Nohemi said that she "felt so much pain it actually felt like [Perez] broke [her] arm." Nohemi said that Perez grabbed a "horse whip that he use[d] to hit [them] with," and "hit [her] legs a couple of times as [she] was lying on the bed crying." Nohemi testified that she sustained "some bruising, red marks and soreness from the incident."

Nohemi testified that on June 22, 2025, after she had come home with her two youngest children, Perez yelled and cursed at her and threatened to force anal sex upon her. Nohemi said, "he threw me to the floor by my hair and he sat me up on the floor still by my hair, pulled down his shorts and rubbed his genitals on my face forcing and yelling at me to give him oral sex." According to Nohemi, after she resisted, Perez released her hair and threw her down to the floor. She testified,

> He pinned me face down and took my cell phone from my back pocket and he got off me and sat me up by my hair, he grabbed me by my head, my hair, my neck and I felt him strike me open handed to the left side of my face. He was attempting to open my cell phone from the face recognition and that's when I yelled for [my child] to call [9-1-1]. So he stopped. He took his hands off of me to stop the [9-1-1] call and that's when I was able to run out of the room and to my [seventeen]-year-old's room. [My child] called the police as [Perez] took my cell phone and went on to smash it with a baseball bat. He was arrested that afternoon.

Nohemi introduced a certified copy of a complaint and information against Perez showing that, on or about June 22, 2025, Perez allegedly committed family-violence assault against Nohemi by striking her with his hand.

Nohemi admitted that she had signed an affidavit of non-prosecution on August 13, 2025, and bonded Perez out of jail because he was the family's sole breadwinner. Even so, Perez was rearrested in August on another offense.

Nohemi testified that she was in the process of divorcing Perez, that the divorce court had entered "a restriction order" prohibiting Perez from returning to the marital home, and that Perez violated the restriction order in September by breaking into the marital home, which damaged the front door. Perez was arrested, and a certified copy of a complaint and third-degree felony indictment against him, also introduced into evidence, alleged that on or about September 20, 2025, Perez committed the offense of repeated violation of court orders or conditions of bond. *See* TEX. PENAL CODE ANN. § 25.072(e) (Supp.). Specifically, the allegation in the complaint said that on July 12, 2025, Perez knowingly and intentionally "violate[d] the terms of an order issued by [the] HONORABLE J. BELLO sitting as the County Court at Law 5 of Montgomery County," both "on June 23, 2025, . . . by, communicating with a protected person, to wit: Nohemi Sanchez" and "on September 20, 2025[,] . . . by, going within 200 yards of a protected place to wit: [the marital home]."

Nohemi testified that there were other incidents of domestic violence and that, for "most of th[o]se incidents[,] [her] children we[re] there." Even though Perez had not committed violence against the children, Nohemi testified that Perez posed an imminent danger to her children due to his "very, very bad temper." During cross-examination, Nohemi said that, at some point, the divorce court lifted the protective order it had entered on July 30, 2025, because she and Perez were trying to work things out and that, after the order was lifted, she had been in contact with Perez to discuss property they needed to sell.

Perez testified that he and Nohemi were still married and that Nohemi and the children were occupying the marital home. Perez testified that he loves his children and that he had a

good relationship with them but he had not seen them for a few months because bond conditions prohibited him from going to the marital home. Perez testified that the criminal case for family-violence assault was still pending and that he was denying those allegations, as well as all other allegations of domestic violence. He testified that Nohemi had contacted him to divide property and believed she wanted him to return.

From the bench, the trial court granted Nohemi's requested protective order. The trial court announced its finding that family violence had occurred and included the two minor children in the protective order but provided Perez with visitation at "Access Builds Children." The trial court's written protective order was effective for two years.

In its findings of fact and conclusions of law, the trial court noted that it found Nohemi's testimony credible and Perez's denial of Nohemi's allegations not credible. The trial court also entered the following findings, which Perez complains of:

> 8. On February 22, 2025, [Perez] committed family violence against [Nohemi] when he ripped her watch from her wrist and whipped her [o]n the legs with a horse whip. The actions were intended to result in physical harm, bodily injury, or assault. Both actions actually resulted in pain. [Perez]'s use of the whip also caused bruising, red marks, and soreness to [Nohemi].
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> 9. On June 22, 2025, [Perez] committed family violence against [Nohemi] when he threatened her with anal sex and raised his left arm as if to slap her. Both actions were intended to . . . place [Nohemi] in fear of imminent bodily injury or sexual assault and placed her in reasonable fear of imminent bodily injury or sexual assault.
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> 10. On June 22, 2025, [Perez] committed family violence against [Nohemi] when he threw her to the floor, grabbed her by the hair, forcibly rubbed her face with his genitals, pinned her face down, took her cell phone, grabbed her head, hair, and neck, and struck her on the left side of her face. The actions were intended to result in physical harm, bodily injury, assault, or sexual assault. The actions resulted in red marks and scratches on [Nohemi]'s face, arms, and legs.

> The children witnessed the family violence. [Nohemi] yelled for Siri to call [9-1-1] and pressed charges. [Perez] was charged with Assault – Family Violence and placed on conditions of bond that remained in place during the pendency of this case.
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> 11. Based on the events of February 22, 2025[,] and June 22, 2025, [Perez] has a history or pattern of family violence.
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> 12. On September 20, 2025, and while on conditions of bond for the June 22, 2025[,] assault, [Perez] entered the home of [Nohemi] in violation of the Conditions of Bond. [Nohemi] filed a police report. Later that evening, she found that the [front] door had been broken at the hinge to allow [Perez]'s entry into the home. [Perez] was charged with and later indicted for Violation of Bond or Protective Order Two or More Times Within [Twelve] Months. A Magistrate's Order of Emergency Protection expired shortly after [Nohemi] filed th[e] Application for Protective Order. [Perez]'s mere presence at the residence was a violation of his conditions of bond.

The trial court determined that it was necessary and appropriate to include the minor children as protected persons to "prevent or reduce the likelihood of family violence or future harm," and suspended Perez's "license to carry a handgun, if he ha[d] one."

II. Standard of Review and Relevant Law

"To obtain a family violence protective order, the petitioner must prove 'that family violence has occurred and is likely to occur in the future.'" *D.G. v. A.F.*, No. 09-17-00039-CV, 2018 WL 2974442, at *3 (Tex. App.—Beaumont June 14, 2018, no pet.) (mem. op.) (quoting TEX. FAM. CODE ANN. § 81.001). "When trial courts are asked to change a parent's rights to possession or access, evidence regarding issues of the existence of family violence are relevant, as is what ruling would be best for the interests of the children affected." *Id.* (citing TEX. FAM. CODE ANN. §§ 81.001, 153.001(a)). "Under the [Texas] Family Code, '[t]he best interest of the child[ren] shall always be the primary consideration of the court in determining the issues of

conservatorship and possession of and access to the child[ren].'" *Id.* (second alteration in original) (quoting TEX. FAM. CODE ANN. § 153.002).

"Because the trial court acts primarily as the factfinder on request for family violence protective orders, we review the trial court's determinations under a legal and factual sufficiency standard." *Sanchez v. Sanchez*, No. 09-22-00325-CV, 2023 WL 5284494, at *2 (Tex. App.—Beaumont Aug. 17, 2023, no pet.) (mem. op.) (citing *In re M.G.M.*, 163 S.W.3d 191, 201 (Tex. App.—Beaumont 2005, no pet.) (citing *In re Doe*, 19 S.W.3d 249, 253 (Tex. 2000))).

"When a party attacks the legal sufficiency of an adverse finding on an issue on which he did not have the burden of proof, he must demonstrate that there was no evidence to support the finding." *Id.* at *3 (citing *Graham Cent. Station, Inc. v. Peña*, 442 S.W.3d 261, 263 (Tex. 2014) (per curiam)). "When a party attacks the factual sufficiency of an adverse finding on an issue on which he did not have the burden of proof, he must demonstrate on appeal that there is insufficient evidence to support the adverse finding." *Id.* (citing *In re M.G.M.*, 163 S.W.3d at 201). "To conduct this review, we examine the entire record and consider and weigh all the evidence, both in support of, and contrary to, the challenged finding." *Id.* (citing *In re M.G.M.*, 163 S.W.3d at 201 (citing *Ortiz v. Jones*, 917 S.W.2d 770, 772 (Tex. 1996) (per curiam))). "We must uphold the finding unless the evidence that supports it is so weak as to be clearly wrong or manifestly unjust." *Id.* (quoting *In re M.G.M.*, 163 S.W.3d at 201).

It is axiomatic that "[t]his Court is not a factfinder." *Id.* (citing *Maritime Overseas Corp. v. Ellis*, 971 S.W.2d 402, 407 (Tex. 1998)). Where, as here, "the trial judge is the factfinder, the trial judge is the sole judge of the weight and credibility of the evidence, is entitled to resolve

any conflicts in the evidence, and may choose which testimony and witnesses to believe." *Id.* (citing *City of Keller v. Wilson*, 168 S.W.3d 802, 819 (Tex. 2005); *Golden Eagle Archery, Inc. v. Jackson*, 116 S.W.3d 757, 761 (Tex. 2003)). Thus, "[i]n reviewing a no evidence issue, we view the evidence in a light most favorable to the finding, crediting favorable evidence if a reasonable factfinder could do so, and disregarding contrary evidence unless a reasonable factfinder could not." *Id.* (citing *City of Keller*, 168 S.W.3d at 807).

The term "[f]amily violence" is defined in part as:

> [A]n act by a member of a family or household against another member of the family or household that is intended to result in physical harm, bodily injury, assault, or sexual assault or that is a threat that reasonably places the member in fear of imminent physical harm, bodily injury, assault, or sexual assault.

TEX. FAM. CODE ANN. § 71.004(1). Section 85.001 of the Texas Family Code states, in pertinent part:

> (a) At the close of a hearing on an application for a protective order, the court shall find whether family violence has occurred.
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> (b) If the court finds that family violence has occurred, the court:
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> > (1) shall render a protective order as provided by Section 85.022 [of the Texas Family Code] applying only to a person found to have committed family violence; and
> >
> > (2) may render a protective order as provided by Section 85.021 [of the Texas Family Code] applying to both parties that is in the best interest of the person protected by the order or member of the family or household of the person protected by the order.
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> (c) A protective order that requires the first applicant to do or refrain from doing an act under Section 85.022 shall include a finding that the first applicant has committed family violence.

TEX. FAM. CODE ANN. § 85.001(a)–(c) (Supp.).

Under Section 85.022(b), a trial "court may prohibit the person found to have committed family violence from," among other things, possessing a firearm, "communicating . . . directly with a person protected by an order or a member of the family or household of a person protected by an order, in a threatening or harassing manner[,]" and "going to or near the residence or place of employment or business of a person protected by an order or a member of the family or household of a person protected by an order" as well as from "possessing a firearm." TEX. FAM. CODE ANN. § 85.022(b)(2)(A), (b)(3), (b)(6) (Supp.). The trial court may also "suspend a license to carry a handgun . . . that is held by a person found to have committed family violence." TEX. FAM. CODE ANN. § 85.022(d) (Supp.). Under Section 85.021(3), a trial court may "provide for the possession of and access to a child of a party" in a protective order "if the person receiving possession of or access to the child is a parent of the child." TEX. FAM. CODE ANN. § 85.021(3).

III. Sufficient Evidence Supports the Family-Violence Protective Order

In his first point of error, Perez complains of the trial court's findings, numbered eight through twelve, which found that Perez (1) committed family violence on February 22, 2025, when he "ripped [Nohemi's] watch from her wrist and whipped her [on her] legs with a horse whip"; (2) committed family violence on June 22 while the children were present "when he threatened her with anal sex and raised his left arm as if to slap her"; (3) committed family violence on June 22 when he "threw [Nohemi] to the floor, grabbed her by the hair, forcibly rubbed her face with his genitals, pinned her face down, took her cell phone, grabbed her head, hair, and neck, and struck her on the left side of her face"; (4) had a pattern or history of family

violence; and (5) had violated bond conditions and was indicted for the offense of violation of bond or protective order two or more times within twelve months.

Perez argues that "[t]he only evidence supporting the family-violence finding was [Nohemi]'s testimony and nothing more." Testimony is evidence. *See Walter v. Box*, No. 09-06-00174 CV, 2007 WL 1219413, at *2 (Tex. App.—Beaumont Apr. 26, 2007, no pet.) (mem. op.). Although Perez points to conflicting evidence and challenges Nohemi's credibility, the trial court specifically found Perez's testimony not credible and Nohemi's testimony credible. Because the trial court is the sole fact-finder on this issue, we will not disturb the trial court's credibility finding. *See Sanchez*, 2023 WL 5284494, at *3 (citing *City of Keller*, 168 S.W.3d at 819). Here, Nohemi's testimony, in conjunction with the complaints, information, and indictments introduced into evidence, supported each of the trial court's findings numbered eight through twelve. As a result, we find that legally and factually sufficient evidence supported these findings.

Next, in a conclusory manner and without proper analysis, Perez argues that the trial court erred by including his minor children as protected persons, that "supervised-visitation order at Access Builds Children is likewise unsupported," that the "firearm-related relief must also be reversed," and that the "two-year maximum duration of the protective order is unsupported by the record." However, Nohemi sought a protective order for her minor children and, after hearing evidence that the children were present during incidents of domestic violence, the trial court rendered a protective order that was in their best interests, as authorized by Section 85.001(b)(2). *See* TEX. FAM. CODE ANN. § 85.001(b)(2). Also, the trial court's supervised

visitation was authorized by Section 85.021(3), suspension of Perez's license to carry a firearm was authorized by Section 85.022(d), and Section 85.025(a)(1) provided for a two-year duration for a family-violence protective order. *See* TEX. FAM. CODE ANN. §§ 85.021(3), 85.022(d), § 85.025(a)(1) (Supp.).

Because the trial court's protective order was supported by legally and factually sufficient evidence and was in accordance with the Texas Family Code, we overrule Perez's first point of error.

IV. Perez Has Waived His Complaint About Specific Findings

Next, Perez complains that the trial court failed to make the specific findings that he proposed, without proper argument of why those specific findings were required. Because Perez's brief on this matter is conclusory, we find he has waived this complaint.

"An appellate brief must include 'a clear and concise argument for the contentions made, with appropriate citations to authorities and to the record.'" *In re. S.P.*, No. 09-21-00296-CV, 2022 WL 318441, at *5 (Tex. App.—Beaumont Feb. 3, 2022, no pet.) (mem. op.) (quoting TEX. R. APP. P. 38.1(i)). In this case, Perez states in his brief that he "timely requested specific findings on seventeen factual issues and seven legal conclusions, including credibility attacks, mental-health impairments . . . , false professional credentials . . . , initiation of deceptive contact . . . , and the September 20 door-entry contradictions" and complains that "[t]he [trial] court's written findings gave only conclusory resolutions . . . and boilerplate reclassification language." Yet, Perez neither cited nor applied law requiring the trial court to make the specific findings he requested. "By providing only bare assertions of error or allegations, we conclude [Perez]'s brief

fails to satisfy Rule 38.1 [of the Texas Rules of Appellate Procedure], the brief presents nothing for our review on appeal, and [he] waived our review of th[at] complaint[]." *Id.* (citing *See In re J.W.*, No. 09-20-00204-CV, 2021 WL 1567332, at *3, (Tex. App.—Beaumont Apr. 22, 2021, no pet.) (mem. op.); *Fredonia State Bank v. Gen. Am. Life Ins. Co.*, 881 S.W.2d 279, 284 (Tex. 1994) ("a point may be waived due to inadequate briefing[]" (alteration in original))).

Because it is not properly presented to this Court, we overrule Perez's last complaint.

V. Conclusion

We affirm the trial court's order.

Scott E. Stevens
Chief Justice

Date Submitted: July 22, 2026
Date Decided: October 9, 2026